

25STCV35170 25STCV35170

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Case Number: 25STCV35170 Hearing Date: August 14, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 14, 2026

Case Name: Sermeno v. American Honda

Motor Co.

Case

No.: 25STCV35170

Matter: Motion for Judgment on the Pleadings

Moving

Party: Defendant American

Honda Motor Co., Inc.

Responding Party: Plaintiff Amanda Sermeno

Tentative Ruling: Defendant American Honda Motor Co.,

Inc.'s motion for judgment on

the

pleadings is granted in part and denied in part.

Plaintiff Amanda

Sermeno filed this action against Defendant American Honda Motor Co., Inc.

("Defendant") and Does 1 through 10. The Complaint alleges five causes of action against Defendant for: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of implied merchantability; and (5) fraudulent inducement-concealment. Plaintiff alleges that on November 12, 2021, Plaintiff purchased a 2022 Honda Civic vehicle identification number 2HGFE2F50NH504000 ("Subject Vehicle").

Defendant

moves for judgment on the pleadings on all of Plaintiff's causes of action.

Plaintiff opposes.

Legal Standard

A

motion for judgment on the pleading may be made to the entire complaint or to any cause of action therein. (Code Civ. Proc., § 438.) It may be made if the complaint does not state facts sufficient to constitute a cause of action. (Ibid.)

"[A] motion

for judgment on the pleadings is the functional equivalent of a general demurrer.... Indeed, the only significant difference between the two motions is in their timing." (People v. \$20,000 U.S. Currency (1991) 235 Cal.App.3d 682, 691.) A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court ""treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . ." (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.)

Analysis

Meet and

Confer

Before

a party files a motion for judgment on the pleadings, “the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings.” (Code Civ. Proc., § 439, subd. (a).)

The

parties did not meet and confer. Defendant contends that it sent a meet-and-confer letter and follow-up email to Plaintiff, but Plaintiff did not respond. (Avelino Decl., ¶¶ 2-3.) However, in the interest of judicial efficiency, the Court will address Defendant’s motion.

Motion

for Judgment on the Pleadings

Defendant

moves for judgment on the pleadings as to all causes of action on the basis that Plaintiff purchased a used car, the statute of limitations bars Plaintiff from relief, and Plaintiff fails to allege sufficient facts to allege a viable cause of action.

Rodriguez v. FCA US LLC

Recently,

the court in Rodriguez stated, “we think that if the Legislature had intended to define ‘new motor vehicle’ to include a potentially vast category of used cars’ with unexpired new car warranties, ‘it would have been done so more clearly and explicitly than tucking it into a reference to demonstrators and dealer-owned vehicles.’” (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 199 (emphasis added) (Rodriguez).) “[S]ection 1795.5 provides express warranty protections for used goods only where the entity selling the used product issues an express warranty at the time of sale.” (Id. at p. 201.) A manufacturer is exempt under Civil Code section 1791 when a used vehicle is sold unless it is acting as a retailer or distributor. (See Kiluk v. Mercedes-Benz USA, LLC (2019) 43 Cal.App.5th 334, 340.) “For new products, liability extends to the manufacturer; for used products, liability extends to the

distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good." (Rodriguez, supra, 17 Cal.5th at p. 202.)

Defendant contends that Subject Vehicle is a used car. However, the Complaint makes no such allegations. The Complaint states:

On or about November 12, 2021, Plaintiff entered into a warranty contract with Defendant HONDA regarding a 2022 Honda Civic, vehicle identification number 2HGFE2F50NH504000 (hereafter "Subject Vehicle"), which was manufactured and/or distributed by Defendant HONDA.

(Compl., ¶ 6.)

The Court is limited to what is alleged in the Complaint; thus, the Court cannot determine that the Rodriguez bars Plaintiff's claims based on the face of the Complaint. (County of Orange v. Association of Orange County Deputy Sheriffs (2011) 192 Cal.App.4th 21, 32.)

Thus, Defendant's motion for judgment on the pleadings on this basis is denied.

Statute
of Limitations

First,
Second, Third, and Fourth Causes of Action

““A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. [Citation.]' [Citation.]” (Committee for Green Foothills v. Santa Clara County Bd. of Supervisors (2010) 48 Cal.4th 32, 42.)

California
Uniform Commercial Code's (UCC) four-year statute of limitations for breaches

of warranty applies to Song-Beverly breach of express warranty claims and breach of implied warranty claims. (Com. Code, section 2725, subd. (1)); *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 214-15.)

As an initial matter, Defendant combined the arguments for the causes of action under this heading, and it makes it difficult to address what arguments are made as to each cause of action. Second, the Defendant makes a conclusory argument that the statute of limitations bars Plaintiff's claims, but does not provide legal authority to support this proposition. (Mot., 7:14-8:12.)

Thus, the motion for judgment on the pleadings on this basis is denied because Defendant did not meet its burden.

Fifth
Cause of Action

Causes of action based on fraud have a three-year statute of limitations. (Code Civ. Proc., § 338, subd. (d).) "Under the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause, unless the plaintiff pleads and proves that a reasonable investigation at that time would not have revealed a factual basis for that particular cause of action." (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 803 (Fox).) "In order to rely on the discovery rule for delayed accrual of a cause of action, a plaintiff must affirmatively excuse his failure to discover the fraud within three years after it took place, by establishing facts showing that he was not negligent in failing to make the discovery sooner and that he had no actual or presumptive knowledge of facts sufficient to put him on inquiry." (*Hobart v. Hobart Estate Co.* (1945) 26 Cal.2d 412, 436.)

"When a plaintiff relies on a theory of fraudulent concealment, delayed accrual, equitable tolling, or estoppel to save a cause of action that otherwise appears on its face to be time-barred, he or she must specifically plead facts which, if proved, would support the theory." (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 640.)

Defendant

argues that on the face of the Complaint, the Complaint is barred by the three-year statute of limitations because Plaintiff fails to allege sufficient facts to assert facts as to how she discovered the alleged defects. Plaintiff alleges that she discovered the wrongful conduct on April 6, 2023. (Compl., ¶ 24.)

In

opposition, Plaintiff argues that the demurrer should be overruled because the Complaint does not “affirmatively disclose that statute of limitations has run.” (Opp., 4:9-10.) However, unlike Plaintiff’s other claims, to invoke delayed discovery in fraud-based claims, Plaintiff must plead that a reasonable investigation would not have revealed the alleged defect. (Fox, *supra*, 35 Cal.4th at p. 803.) Here, Plaintiff has not alleged facts to support the delay in discovery.

Thus, the

motion for judgment on the pleadings is granted on this basis as to the fifth cause of action.

Fails

to Allege Sufficient Facts

First,

Second, Third, and Fourth Causes of Action

Defendant

makes a conclusory argument that the causes of action fail to allege sufficient facts. However, the Court finds that Defendant did not support these claims with legal authority.

Thus, the

motion for judgment on the pleadings is denied as to the first, second, third, and fourth causes of action on this basis.

Leave

to Amend

Leave to amend must be allowed

where there is a reasonable possibility of successful amendment. (See Goodman

v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that the pleading can be successfully amended. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Plaintiff has not provided the Court with any basis as to how she can cure her pleading as to the fifth cause of action. The Court will allow Plaintiff the opportunity to argue whether or not leave to amend will be granted.

Conclusion

Defendant

American Honda Motor Co., Inc.'s motion for judgment on the pleadings is granted as to the fifth cause of action.

Defendant

American Honda Motor Co., Inc.'s motion for judgment on the pleadings is denied as to the first, second, third, and fourth causes of action.